ARKANSAS BAPTIST COLLEGE

Whistleblower Policy

Integrity, accountability, good-faith reporting, and protection from retaliation

Policy owner	Office of Human Resources
Oversight	Office of the President and Board of Trustees
Effective date	Upon approval by the Board of Trustees
Review cycle	At least every two years
Supersedes	Any prior whistleblower policy or interim guidance

1. Purpose

Arkansas Baptist College (the "College") is committed to conducting its affairs with integrity, ethics, accountability, transparency, and responsible stewardship, consistent with its mission as a Christian institution of higher learning. Honesty, moral courage, and responsible reporting are essential to protecting the College, its students, its employees, and the public.

This policy establishes accessible and appropriately independent channels for reporting suspected wrongdoing; protects good-faith reporters and participants from retaliation; provides for prompt, fair, impartial, and appropriately confidential review; and supports compliance with applicable law and College policy.

2. Scope

This policy applies to all members of the College community and to others who conduct business with or on behalf of the College, including:

- Full-time and part-time faculty, staff, and administrators;
- Members and officers of the Board of Trustees;
- Students;
- Volunteers; and
- Independent contractors, vendors, consultants, and other stakeholders.

3. Definitions

Good-faith report. A report made honestly, without malice or intent for improper personal gain, and based on a reasonable belief that the information disclosed may indicate misconduct. A reporter need not prove that misconduct occurred or be correct in the conclusion to receive protection for a good-faith report.

Reporter. A person who raises a concern or provides information under this policy, whether identified or anonymous.

Retaliation. An adverse action, threat, intimidation, harassment, interference, or other conduct that might dissuade a reasonable person from making a good-faith report or participating in an authorized review.

Conflict of interest. A personal, professional, financial, supervisory, or other interest that could reasonably call a person's impartiality into question.

4. Reportable Conduct

A person is encouraged to report conduct reasonably believed to violate law, regulation, College policy, contractual or grant requirements, or applicable ethical standards. Reportable matters include, but are not limited to:

- Fraud, embezzlement, theft, misappropriation, improper payments, bribery, or kickbacks;
- Misuse of College, grant, restricted, or public funds;
- Falsification, concealment, unauthorized alteration, or improper destruction of financial, academic, personnel, student, compliance, or other College records;
- Violations of accounting procedures, internal controls, procurement requirements, or segregation-of-duty safeguards;
- Misuse of College assets, property, systems, data, or confidential information;
- Undisclosed or improperly managed conflicts of interest;
- Material violations of federal, state, or local law, including requirements applicable to federal student aid, federal grants, civil rights, campus safety, student privacy, workplace safety, or other regulated College activities;
- Discrimination, harassment, or retaliation prohibited by law or College policy;
- Conduct that creates a substantial threat to the health or safety of students, employees, or the public;
- Obstruction of, interference with, or failure to cooperate in an authorized investigation; and
- Any other significant breach of College policy or ethical responsibility.

This policy does not replace established procedures for Title IX reports, discrimination complaints, employee or student grievances, academic appeals, campus safety emergencies, or other matters governed by a specific process. Those procedures ordinarily should be used. A person may also use this policy when the concern includes suspected retaliation, misuse of the designated process, concealment, a conflict of interest, or a reasonable fear that the designated process will not provide appropriate protection.

An immediate threat to life or safety should be reported to 911 and Campus Safety at 501-420-1211 before or in addition to a report under this policy.

5. Reporting a Concern

5.1 General expectations

Reports should be made as soon as reasonably possible. A reporter should provide available factual information, such as what occurred, relevant dates and locations, persons involved, possible witnesses, and supporting documents. A reporter should not delay reporting to investigate independently, access records without authorization, confront an involved person, or interfere with evidence or an investigation.

5.2 Authorized reporting channels

Nature of concern	Primary channel
Most employee or operational concerns	Direct supervisor or department head
Concern involving a supervisor or department head	Office of Human Resources: HR@arkansasbaptist.edu | 501-420-1219
Concern involving Human Resources or a senior administrator	Office of the President: President@arkansasbaptist.edu | 501-420-1201
Concern involving the President or a trustee other than the Board chair	Chair of the Board of Trustees
Concern involving the Board chair	Trustee appointed by collaboration of the President and Office of Human Resources
Concern involving both the chair and vice chair, or a pervasive Board conflict	Independent legal counsel designated by the Board

The College shall maintain current contact information for the Board chair on the policy webpage. A change in officeholder or contact information does not require a policy amendment, but the published information must be updated promptly.

A report also may be mailed in a sealed envelope marked "CONFIDENTIAL WHISTLEBLOWER REPORT - TO BE OPENED ONLY BY THE ADDRESSEE" to the appropriate recipient by title at Arkansas Baptist College, 1600 Dr. Martin Luther King Jr. Drive, Little Rock, Arkansas 72202. Personnel receiving such mail shall deliver it unopened to the named officeholder.

5.3 Anonymous reports

A person may report anonymously using the College's designated anonymous reporting form linked on the College policy webpage, printing, and sending it in a sealed envelope marked "CONFIDENTIAL WHISTLEBLOWER REPORT - TO BE OPENED ONLY BY THE ADDRESSEE" to the appropriate recipient by title at Arkansas Baptist College, 1600 Dr. Martin Luther King Jr. Drive, Little Rock, Arkansas 72202 without identifying information. The anonymous reporting form shall be configured not to require or record the reporter's name, College email address, or sign-in identity. The College will not attempt to identify an anonymous reporter except when required by law or necessary to address an imminent threat.

Anonymous reports should include sufficient detail to permit review. Anonymity may limit the College's ability to ask questions, verify information, report progress, or complete an investigation. The Microsoft Forms training and acknowledgment quiz is not an anonymous reporting channel and shall not be used to submit allegations.

5.4 External reporting

Nothing in this policy prohibits or discourages any person from communicating with, filing a charge or complaint with, providing information to, or participating in an investigation or proceeding before an appropriate government agency or law-enforcement authority. No prior authorization from the College is required, and a person is not required to notify the College of such communication. Applicable legal protections and remedies remain available.

6. Receipt, Triage, and Conflict Screening

1. When the reporter's identity and contact information are known, the authorized recipient will acknowledge receipt **within five business days**. Acknowledgment does not represent a conclusion about the report.
2. The authorized recipient will promptly assess immediate safety, legal, regulatory, evidence-preservation, reporting, and conflict-of-interest considerations.
3. The recipient will determine whether the matter falls within this policy, should be referred to another established process, warrants interim protective measures, or requires a full investigation.
4. Before participating, every person assigned to receive, direct, investigate, advise on, or decide the matter must disclose actual or perceived conflicts. A conflicted person shall be recused and shall not receive confidential updates except as legally required.
5. The College will document the routing decision, assigned authority, recusals, and any interim measures.

7. Investigation and Resolution

7.1 Assignment of an impartial investigator

If an investigation is warranted, it will be assigned to a qualified and impartial investigator. Depending on the subject matter and persons involved, the investigator may be Human Resources, another qualified College official, independent legal counsel, an accountant or auditor, or another external investigator selected by the authorized decision-maker.

- For matters not involving the President or a trustee, the President or designee will select the investigator after conflict screening.
- For matters involving the President or a trustee other than the Board chair, the Board chair will select the investigator.
- For matters involving the Board chair, the Board vice chair will select the investigator.
- When both the chair and vice chair are implicated or conflicted, independent legal counsel previously designated by the Board will coordinate assignment with the disinterested members of the Board.
- A person named in the report, supervised by a person named in the report, or otherwise conflicted may not select, direct, or participate in the investigation or disposition.

7.2 Fair process

Investigations will be prompt, fair, impartial, appropriately scoped, and conducted in a manner consistent with applicable law and College policy. All members of the College community are expected to cooperate, preserve relevant information, respond truthfully, and maintain appropriate confidentiality. Knowingly interfering with an investigation or retaliating against a participant is prohibited.

Investigations generally should be completed within 60 calendar days after assignment. When complexity or circumstances require additional time, the case record will document the reason, revised target date, and periodic status review.

7.3 Findings and corrective action

At the conclusion, the investigator will provide findings and recommendations to the authorized decision-maker. Appropriate corrective, disciplinary, remedial, control, policy, reporting, or training action will be taken when warranted. The reporter will be informed that the matter has been addressed or closed to the extent permitted by law, privacy, personnel, student-record, privilege, and other confidentiality requirements. The College is not required to disclose confidential personnel action or other protected information.

8. Confidentiality and Information Protection

The College will protect the confidentiality of reports and investigations to the greatest extent reasonably possible, consistent with a thorough and fair review, legal obligations, safety needs, due process, and corrective action. A reporter's identity and case information will be shared only with persons who have a legitimate need to know. Absolute confidentiality cannot be guaranteed.

Reporters, witnesses, investigators, decision-makers, and others who receive case information must protect it from unauthorized disclosure. This requirement does not restrict lawful communications with government agencies, law enforcement, personal legal counsel, or others as protected by law; nor does it prevent a person from discussing the person's own experiences or exercising protected rights.

9. Prohibition Against Retaliation

The College prohibits retaliation against any person who, in good faith, reports a concern, seeks guidance about reporting, declines to participate in suspected misconduct, preserves or provides information, participates in an authorized review, or communicates with an appropriate government agency or law-enforcement authority.

Retaliation may include termination, demotion, suspension, intimidation, threats, harassment, reduction in pay or hours, adverse scheduling or assignments, exclusion, denial of academic or employment opportunity, a negative evaluation motivated by protected activity, interference with lawful employment or education, or other conduct that could dissuade a reasonable person from reporting or participating.

Suspected retaliation should be reported promptly through any channel in Section 5. A retaliation report involving a person who received or directed the original matter must be routed to an alternate, nonconflicted recipient. Retaliation is a separate violation and may result in discipline up to and including termination, expulsion, contract action, or removal from the Board, subject to applicable procedures.

10. Good Faith and Knowingly False Reports

Protection applies when a report is made honestly and on a reasonable belief, even if the concern is not substantiated. A report made maliciously, with knowledge that it is false, or for improper personal gain is not protected and may result in corrective or disciplinary action. A finding that a concern was unsubstantiated, standing alone, is not evidence that the report was made in bad faith.

11. Centralized Documentation and Records

The Office of Human Resources will maintain a centralized, access-controlled case log for reports that do not involve Human Resources, the President, or a trustee. Board-level matters will be maintained by the Board-designated independent custodian, such as independent legal counsel, and summarized in de-identified form for the institutional log. No person implicated in a report may control or alter the corresponding record.

The log will record, as applicable, general category; reporting channel; assigned authority; conflict screening and recusals; acknowledgment date; referral or investigation status; target and closure dates; disposition; corrective action; retaliation allegations; and follow-up. Case files will be retained securely in

accordance with the College's records-retention schedule, legal holds, grant or regulatory requirements, and applicable law.

At least annually, Human Resources and the Board-designated custodian will prepare a de-identified report for the President and Board of Trustees describing the number and general categories of reports, timeliness, dispositions, corrective actions, retaliation concerns, training completion, and recommended policy or control improvements. Reports to the Board will protect identities and privileged or legally protected information.

12. Training, Communication, and Accessibility

- The policy will be posted on the College website and incorporated by reference into applicable employee and student handbooks.
- Faculty, staff, and administrators will complete training upon hire and annually thereafter. Training will address reportable conduct, reporting options, confidentiality, good faith, nonretaliation, conflicts, and supervisory responsibilities.
- Trustees will receive the policy during onboarding and complete periodic governance and ethics training.
- Supervisors who receive a possible report must promptly route it to an authorized channel, avoid promising absolute confidentiality, preserve information, refrain from investigating independently, and prevent retaliation.
- Training completion, assessment results, acknowledgments, reminders, and remediation will be documented.
- Reasonable accommodations and accessible formats will be provided upon request.

13. Administration, Review, and Non-Waiver

The Office of Human Resources owns and administers this policy for ordinary institutional matters. The President oversees implementation, subject to Board oversight. The Board chair, vice chair, and Board-designated independent legal counsel administer matters assigned to them under this policy. The full Board retains ultimate governance oversight but will exclude conflicted trustees from deliberation and decision-making.

Human Resources will review the policy at least every two years in consultation with the President, Board leadership, and legal counsel. Material amendments require approval by the Board of Trustees. Operational contact information may be updated without a formal policy amendment, provided the approved reporting structure is not changed.

Nothing in this policy creates a contract of employment, alters at-will employment where applicable, limits rights or obligations under law, prevents the College from taking legitimate nonretaliatory action, or requires disclosure of privileged or legally protected information. If this policy conflicts with applicable law, the law controls and the remainder of the policy remains in effect.

14. Questions

Questions about this policy may be directed to the Office of Human Resources at HR@arkansasbaptist.edu or 501-420-1219. Questions should not include an allegation or confidential case information unless submitted through an authorized reporting channel.

15. To submit an electronic Whistleblower complaint, click here ARKANSAS BAPTIST COLLEGE WHISTLEBLOWER REPORT FORM Known or Anonymous Reporting – Fill out form